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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Mr. XX reported that he had sent to the Order of Architects, Planners, Landscape Architects, and Conservators of the Province of Matera (hereinafter, the "Order") - via email on XX and via certified email (PEC) on XX - a report regarding the improper use of the title of architect by a professional registered in the register as a planner, requesting clarifications from the Order regarding this circumstance.

The complainant particularly lamented that the Order "communicated to [him] the receipt of the report, simultaneously transmitting it to the Disciplinary Council of the Order [...]", but "also copied the reported party, thus allowing her to know who the complainant was, without any caution [...]", also making known to her his personal data such as "email and PEC contacts", in addition to his name and surname.

Furthermore, "in the minutes of the meeting of the Order's Council [...], held on XX and which addressed the report transmitted [by the complainant], the name [of the complainant] was inserted in full (without omissions or abbreviations/dots), making the name public (the minutes, for transparency, are published online), thus failing to protect the complainant's privacy and exposing him to potential retaliation."

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Order, with note prot. n. XX of XX, declared, in particular, that:

“on XX the Order [...] received an email message from the address XX signed by ‘XX’ with the subject ‘Improper use of the title ‘Architect’; no identity document was attached to the email”;

“on XX the Order [...] received a certified email message from the address XX, also signed by ‘XX’, with the same subject as the previous one, also without any identity document attached”;

“on XX at the opening of the meeting of the Order’s Council, the President communicated the receipt of the ‘note with a request for clarifications received from XX, regarding the report of the improper use of the title of Architect’, referring the case to the Disciplinary Council; notification of this decision was subsequently given to both email addresses from which the reports were received and, for information, to the person who would improperly use the title ‘Architect’”;

“it is believed that the identity of the reporter was NOT disclosed as he was neither identified nor identifiable, having not attached any identity document to the messages sent; of the 2 emails from which the messages originated, the ordinary one, on the gmail.com domain, (XX) can be activated without providing any identity document to the provider; as for the PEC (XX), referring to a legal entity, in an attempt to identify the complainant, the inipec.it site was consulted for information, but the search via the address ‘XX’ [...] only yielded the tax code of the company ‘XX srl with reduced capital and, through the name of the company, only the registered office was found; the search of the website XX produced as the only result the homepage of the site ‘XX’ [...], where therefore ‘XX’ is a folder of the site XX, which does not contain any more specific information that could lead to...

the complainant: it should also be noted that the surname ‘[complainant's surname]’ is very common in Matera and its Province, to the extent that at the Civil Registry Office of the Municipality of Matera alone, 13 individuals named ‘[complainant's name and surname]’ were registered at the time of the events, and as reported in the Minutes of XX[...], the same complainant was erroneously referred to as ‘city councilor’: in fact, there is also a city councilor, completely unrelated to the matter, with this name; it should also be noted that among the data in question (email addresses) there are no particular data”;

“the decision to publish the Council Minutes was made during the meeting of the Order’s Council on XX at point 12 [...], in compliance with the principle of transparency of the Order, thus in execution of a task of public interest, even if, as pointed out by our Data Protection Officer, such processing operations (communication and dissemination) must be preliminarily assessed in light of their compatibility with the regulations on Personal Data Protection; in this specific case, however, [it is believed] that the publication did not disclose the identity of the notifier”;

regarding the role of the Data Protection Officer (DPO), “the appointment took place during the meeting of the Order’s Council on XX [...]; the publication of contact details on the website and the communication to the Authority occurred on XX;

“without denying the circumstance of the delayed compliance, [the Order points out that it is a] small professional order, where everyone operates pro bono, with only one administrative staff member [...]; [in this context, the Order is, among other things,] reviewing the regulations on publications, limiting their duration based on the type of publication and the presence of any personal data contained.”

In response to a further request for information from the Authority (see note prot. no. XX of XX), the Order, with note prot. no. XX of XX, stated, in particular, that “the minutes of the Order’s Council of XX were published on the Order’s website [...] until XX, when the entire section ‘Council Minutes’ was removed; the removal was recommended by the new DPO, who is preparing suitable regulations that, while respecting the obligations of publicity and transparency provided for by the regulations, also take into account the concurrent protections of the interested parties provided for by the regulations on personal data protection.”

With note of XX (prot. no. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, having the Order:

- communicated the personal data of the notifier and current complainant to the reported professional in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the

absence of a legal basis, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Article 2-ter of the Code;

- transmitted the personal data of the reported professional and of a third party completely unrelated to the report (namely a city councilor of the Municipality of Matera, sharing the same name as the notifier and current complainant), in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Article 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- attributed the report to the aforementioned third party unrelated to it, in a manner not compliant with the principle of “accuracy,” in violation of Article 5, paragraph 1, letter d), of the Regulation.

During the investigation, it also emerged that, although the Order promptly appointed its data protection officer (DPO) on XX, that is, before the effective date of the Regulation (May 25, 2018), the publication of the contact details of the same on the institutional website of the Entity and the communication of such data to the Authority only occurred on XX. Therefore, the Office notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, also in relation to the violation of Article 37, paragraph 7, of the Regulation.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note of XX, sent on behalf of the Order by its lawyer, the data controller submitted a defensive memorandum, stating, in particular, that: the Order “in representing the absolute good faith that characterized its actions in the matter at hand, notes that no harm has occurred to the notifier, nor any danger of possible retaliation”;

“on the other hand, the reported professional would have had the right to access all the data of the report: it should be considered that the information acquired by the Administration or by a public subject following a report is nothing more than mere information, devoid of probative and indicative characteristics, aimed at stimulating a verification activity, and possible application of sanctions, of the contested facts”;

“the report constitutes the relationship that involves not only the author and the competent Administration, but also the person who is affected by the reported facts”;

“the subjects reported, before even being part of any potential sanctioning procedure, are directly interested parties pursuant to Article 22 of Law No. 241/1990 and are holders of a concrete, direct, current, and legally relevant interest aimed at knowing the report, its content, and its author”;

this “principle is confirmed by administrative jurisprudence”;

“the danger represented in the notice initiating the procedure, relating to the possibility that the conduct of the reporting Order would have allowed the reported party to obtain information regarding the reporter, therefore assumes secondary relevance, considering that the latter, following a specific request, would have had access to the information related to the report”;

therefore, “the actions of the Order did not cause any danger or harm to the reporter”;

“the identity of the reporter was not disclosed, as they were neither identified nor identifiable, having not attached any identification document to the messages sent”;

“the two email addresses did not allow for an immediate connection with the reporting subject nor did the communication contain particular and sensitive data”;

“on the other hand, the same name corresponds to different subjects: hence, an additional element that did not allow for tracing back to the reporter”;

“as for the definition of ‘city councilor,’ it was merely a typographical error and absolutely not characterized by any elements of intent or negligence”;

“additionally, the element of good faith guided the actions of the Order, believing that the publication of the Minutes [...] responded to a public interest in transparency”;

“the Order is a small entity, managed with limited personnel and financial resources: this also affected the management of the matter in question”;

this applies “also with regard to the delay in publishing the name of the Data Protection Officer (DPO): the Order has only one employee who deals with administrative matters.”

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see minutes prot. No. XX of the same date), the Order declared, in particular, that:

“in our legal system, save for cases that fall within the scope of so-called whistleblowing, anonymous reports are not permitted. This is also to safeguard the reported subjects, who, for the exercise of their right of defense, must be able to raise the existence of any conflict of interest positions by the reporting subjects or other subjective circumstances that are nonetheless relevant for the evaluation of the reported facts”;

“the data subject to communication would have been nonetheless accessible during access to documents pursuant to Law 241/1990”;

“no information has been communicated that would allow for a certain identification of the reporting subject, who, moreover, was not a member of the Order.”

3. Outcome of the investigative activity.

3.1 The unlawful communication of the personal data of the complainant to the reported professional.

Public subjects may, as a rule, process personal data if the processing is necessary to fulfill a legal obligation to which the data controller is subject or for the execution of a task of public interest or related to the exercise of public powers conferred upon them (see Article 6, paragraphs 1, letters c) and e), 2, and 3 of the Regulation, as well as Article 2-ter of the Code).

European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures aimed at ensuring lawful and fair processing [...]” (Article 6, paragraph 2, of the Regulation). In this regard, it is highlighted that the operation of “communication” (Article 2-ter, paragraph 4, letter a), of the Code) of personal data, by public subjects, is permitted only if the conditions set forth in Article 2-ter of the Code are met.

The data controller is required, in any case, to respect the principles regarding data protection, among which are “lawfulness, fairness, and transparency” and “data minimization,” according to which personal data must be “processed in a lawful, fair, and transparent manner in relation to the data subject” and “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c), of the Regulation).

That said, following the preliminary investigation related to the complaint, it emerged that:

on XX, the Order received an email message, lacking a copy of a valid identification document, from the address “XX,” signed by “XX,” with the subject “Improper use of the title ‘Architect’”;

on XX, the Order received a certified email message, lacking a copy of a valid identification document, from the address “XX,” signed by “XX,” with the same subject as the previous message;

with minutes No. XX of XX, relating to the meeting of the Order's Council of the same date, the President of the Order “informed the entire Council of the note requesting clarifications received from XX, regarding the report of the improper use of the title of “Architect” by the registered Pian. XX, and the Council, “having taken note of the report received via email on XX, registered under protocol XX on the same date, [...] unanimously decided to refer the case to the Disciplinary Council, mandating the Secretariat to communicate this decision to the reporter and, for information, to the registered Pian. XX”;

with a note dated XX (protocol no. XX), invites “Mr. XX” at the addresses “XX” and “XX”, as well as in copy for information “to the registered Pian. XX”, at the address “XX”, with the subject “Response to Your communication on ‘Improper use of the title ‘Architect’”, the Order communicated, “with reference to the [...] communication of XX, our protocol no. XX on the same date [...], in compliance with the provisions of Article 8, paragraph 1 of the D.P.R. of August 7, 2012, no. 137 [that it] has transmitted [such communication] to the Disciplinary Council of the Order, on XX, for the relevant measures”.

It is therefore established that the Order, with the aforementioned note of XX (protocol no. XX), has informed the reported professional of the name, surname, and ordinary and certified email addresses of the reporter and current complainant.

In this regard, it should be noted that, contrary to what was asserted by the Order during the proceedings, the aforementioned information must be considered "personal data" of the reporter and current complainant, as it relates to an identified or identifiable natural person (Article 4, paragraph 1, no. 1 of the Regulation). In fact, even though the reporter and current complainant did not attach a copy of their identification document to the reports and the Order was therefore unable to identify them with certainty, the reported person could still trace the identity of the reporter. This is due to the potential direct knowledge of the reporter, mentioned by name and surname in the note sent by the Order, or the possibility of identifying them through the aforementioned ordinary and certified email addresses (in the event that the reporter had already had email correspondence with the reported professional) or making such an association through information available to third parties (in the event that the reporter had already had email correspondence with such third parties) or that is publicly available (as in the case of the address XX, traceable, through the so-called "INI-PEC" register, to a limited liability company and, therefore, through a standard company search, also to its partners who are natural persons), as well as, in any case, considering the availability in the national legal system of legal means (for example, if the report constituted a criminal offense) to obtain such information judicially from the providers of ordinary and certified email services that assigned the email addresses in question to the reporter and current complainant (see, by analogy, Court of Justice of the European Union, judgment C-582/14, Breyer, of October 19, 2016).

That clarified, it must be noted that the Order has not demonstrated the existence of the prerequisites provided for by the data protection regulations mentioned above, so that a communication of personal data to third parties by a public entity can be considered lawful, having failed to indicate any legal, regulatory, or general administrative act that expressly provided for the communication of the personal data in question. Nor could such communication be deemed necessary, given that the Order could have sent two separate communications - one to the reported professional and another to the reporter and current complainant - in order to inform them of the interest of the Disciplinary Council of the Order regarding the reported facts, without disclosing to the reported professional information relating to the reporter and current complainant.

Regarding the defense presented by the Order concerning the circumstance that "the reported professional would have had the right to access all the data of the report" (see defensive memorandum, cited) and that, therefore, "the data subject to communication would have been accessible in the context of access to documents pursuant to law 241/1990" (see hearing minutes, cited), it should be noted that - aside from the question of whether, in general, a reported subject can claim a direct, concrete, and current interest corresponding to a legally protected situation related to the report, to access it, even becoming aware of the identity of the reporting subject - it does not appear that, in this case, the reported professional had submitted a request for access to documents to the Order pursuant to Articles 22 and following of law August 7, 1990, no. 241. The Order has, in fact, on its own initiative, written to the reported professional, informing them of the name, surname, and email addresses (ordinary and certified) of the reporter and current complainant.

In light of the preceding considerations, it must be concluded that, by carrying out the communication of the personal data in question, the Order acted in a manner inconsistent with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Article 2-ter of the Code.

3.2 The unlawful dissemination of personal data on the institutional website of the Order and the violation of the principle of accuracy.

operation of "dissemination" (art. 2-ter, paragraph 4, letter b) of the Code) of personal data by public entities is permitted only if there is an appropriate legal basis (see art. 6, paragraphs 1, letters c) and e), 2 and 3 of the Regulation, as well as 2-ter of the Code) and, in any case, in compliance with the principles of data protection (see art. 5 of the Regulation).

In this specific case, it has been established that, until XX, the Order published on its official website the minutes of the Order Council of XX, containing personal data related both to the reported professional (title, first name and surname; reported incident) and to "XX," incorrectly indicated as the reporter and actually completely unrelated to the incident.

Considering that the Order did not indicate any law, regulation, or general administrative act that expressly provided for the online publication of the personal data in question - to the extent that the same Order declared that, after receiving the Authority's request for information, it proceeded to remove the entire "Council Minutes" section from its website and to "revise the publication regulations, limiting their duration based on the type of publication and the presence of any personal data contained" - it must be concluded that the Order, by disseminating the personal data of the reported professional and of XX, acted in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code.

It should also be noted that, based on the principle of "accuracy," personal data must be "accurate and, where necessary, kept up to date [...]" (art. 5, paragraph 1, letter d) of the Regulation).

In this case, as stated by the Order during the investigation, XX, who shares the name with the reporter and current complainant, was "absolutely unrelated to the incident" and that the minutes referred to him due to "a mere typographical error."

Having mistakenly attributed the report in question to a municipal councilor of the Municipality of Matera, who shares the name with the reporter, by including his data in the minutes of the Order Council of XX and disseminating such data on its official website, the Order also acted in a manner not compliant with the principle of accuracy of personal data, in violation of art. 5, paragraph 1, letter d), of the Regulation.

3.3 The delay in the publication of the contact details of the DPO and in communicating them to the Authority

Pursuant to art. 37, paragraph 7, of the Regulation, "the data controller [...] publishes the contact details of the data protection officer and communicates them to the supervisory authority" (see paragraph 2.6 of the "Guidelines on Data Protection Officers," adopted by the Article 29 Working Party on April 5, 2017, WP 243 rev. 01, endorsed by the European Data Protection Board with "Endorsement 1/2018," as well as paragraph 7 of the "Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector," attached to the provision of April 29, 2021, no. 186, web document no. 9589104).

In this regard, the Order stated during the investigation that, although the designation of the DPO was timely made during the meeting of the Order Council on XX, that is, before the effective date of the Regulation (May 25, 2018), the publication of the contact details of the same on its official website and the communication of such data to the Authority only occurred on XX.

It is therefore established that the Order, from XX until XX, acted in violation of art. 37, paragraph 7, of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under art. 168 of the Code - while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by art. 11 of the Garante Regulation no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the conduct of the Order is noted, for having acted in violation of articles 5, paragraph 1, letters a) and d), 6 and 37, paragraph 7, of the Regulation, as well as 2-ter of the Code.

The violation of the aforementioned provisions occurred as a result of three distinct conducts, relating to the communication of personal data (see previous paragraph 3.1), the dissemination of personal data, also in violation of the principle of accuracy (see previous paragraph 3.2), and the communication of the contact details of the DPO (see previous paragraph 3.3).

5. Warning (art. 58, paragraph 2, letter b), of the Regulation).

The Garante, pursuant to art. 58, paragraph 2, letter b), of the Regulation, has the power to "issue warnings to the data controller or the processor where the processing has violated the provisions of the [...] regulation."

Regarding the specific case, the late communication to the interested parties and to the Authority of the contact details of the DPO (see previous paragraph 3.3) can be considered a single and distinct conduct.

That said, it is necessary to take into account certain elements, including contextual ones, that emerged during the investigation, which are essential for the concrete assessment of the extent of the violations found and the harmfulness of the

****Overall Conduct (see Recital 148 of the Regulation)****

In particular, considering that:

- The Order is a small entity (with approximately 463 members registered in the architects' register), equipped with extremely limited organizational resources (see the statements of the Order, as mentioned above, regarding the circumstance that the Entity can rely on "only one administrative staff member");
- The violation emerged following checks ordered by the Authority ex officio, and no complaints or reports regarding the failure to communicate the contact details of the DPO to the interested parties have been received, who had nonetheless been promptly designated by the Order;
- There are no previous relevant violations committed by the data controller;
- The circumstances of the specific case lead to qualifying it as a "minor violation," pursuant to Recital 148, Article 83, paragraph 2, of the Regulation and the "Guidelines on the application and imposition of administrative monetary sanctions under Regulation (EU) 2016/679," adopted by the Article 29 Working Party on October 3, 2017, WP 253, and endorsed by the European Data Protection Board with "Endorsement 1/2018" of May 25, 2018.

In light of all the above and the overall terms of the case in question, it is deemed sufficient to admonish the Order for the violation of Article 37, paragraph 7, of the Regulation.

In this context, considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

Finally, it is noted that the prerequisites of Article 17 of Regulation No. 1/2019 are met.

****6. Adoption of the injunction order for the application of the administrative monetary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code)****

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative monetary sanction pursuant to Article 83, in addition to [other] corrective measures [under this paragraph], or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this case, the Order has engaged in two additional distinct sanctionable conducts, in addition to the conduct referred to in the previous paragraph 5, which must therefore be considered separately for the purposes of quantifying the administrative sanctions to be applied as illustrated below.

****6.1 The unlawful communication of the complainant's personal data to the reported professional****

As illustrated above, the Order, by communicating the personal data of the reporter and current complainant to the reported professional, acted in a manner inconsistent with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Article 2-ter of the Code.

In this regard, it is noted that if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction must not exceed the amount specified for the most serious violation, thus absorbing the other less serious violations (see Article 83, paragraph 3, of the Regulation).

Considering that, in this case, all violations are subject to the administrative sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative monetary sanction, imposed based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- The conduct of the Order exposed the complainant to the potential risk of suffering prejudicial consequences in relations with the reported professional or other subjects (see Article 83, paragraph 2, letter a), of the Regulation);
- The violation concerned only one interested party (see Article 83, paragraph 2, letter a), of the Regulation);
- The conduct of the Order is negligent, as it made an error in sending a single communication to the reporter and the reported professional (see Article 83, paragraph 2, letter b), of the Regulation);
- The violation did not involve personal data relating to special categories of data (see Article 9 of the Regulation) or to criminal convictions and offenses (see Article 10 of the Regulation) (see Article 83, paragraph 2, letter g), of the Regulation);
- It is believed that, in this case, the level of severity of this violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is necessary to take into consideration the following mitigating circumstances:

- There are no previous relevant violations committed by the data controller (see Article 83, par. 2, lett. e), of the Regulation);
- the Order has provided good cooperation with the Authority during the investigation (cf. art. 83, par. 2, lett. f), of the Regulation);
- the Order is a small entity (with approximately 463 members registered in the architects' register), equipped with extremely limited organizational resources (see the statements of the Order, mentioned above, regarding the fact that the Entity can rely on "only one administrative staff member") (cf. art. 83, par. 2, lett. k), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the financial penalty at €1,500 (one thousand five hundred) for the violation of articles 5, par. 1, lett. a) and 6 of the Regulation, as well as 2-ter of the Code, as an administrative financial penalty considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account the aforementioned risks to which the complainant has been exposed, it is also deemed necessary to apply the ancillary penalty of publication on the Authority's website of this provision, as provided for by art. 166, comma 7 of the Code and art. 16 of the Authority's Regulation no. 1/2019.

In this context, considering, in any case, that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under art. 58, par. 2, of the Regulation do not exist.

It is finally noted that the prerequisites of art. 17 of Regulation no. 1/2019 are met.

6.2 The unlawful dissemination of personal data on the institutional website of the Order and the violation of the principle of accuracy

As illustrated above, the Order has disseminated personal data relating both to the reported professional (title, name, and surname; reported incident) and to a municipal councilor with the same name as the complainant, mistakenly identified as the reporter and in reality completely unrelated to the incident, in a manner not compliant with the principles of "lawfulness, fairness, and transparency" and "accuracy," and in the absence of a legal basis, in violation of articles 5, par. 1, lett. a) and d), and 6 of the Regulation, as well as 2-ter of the Code.

In this regard, it is noted that if, in relation to the same processing or related treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative financial penalty must not exceed the amount specified for the most serious violation, thus absorbing the other less serious violations (cf. art. 83, par. 3, of the Regulation).

Considering that, in this case, all violations are subject to the administrative penalty provided for by art. 83, par. 5, of the Regulation, as also referenced by art. 166, comma 2, of the Code, the total amount of the penalty is to be quantified up to €20,000,000.

The aforementioned administrative financial penalty imposed, based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

Taking into account that:

the conduct of the Order has exposed the reported professional to possible detrimental consequences for their professional activity (cf. art. 83, par. 2, lett. a), of the Regulation);

the Order, albeit by mistake (cf. art. 83, par. 2, lett. b), of the Regulation), attributed the report to a subject completely unrelated to the incident, exposing them to the potential risk of suffering detrimental consequences in relations with the reported professional or other subjects (cf. art. 83, par. 2, lett. a), of the Regulation);

the violation concerned only two interested parties (cf. art. 83, par. 2, lett. a), of the Regulation);

the violation did not involve personal data relating to special categories of data (see art. 9 of the Regulation) or to criminal convictions and offenses (see art. 10 of the Regulation) (cf. art. 83, par. 2, lett. g), of the Regulation);

it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is necessary to consider the following mitigating circumstances:

there are no relevant previous violations committed by the data controller (cf. art. 83, par. 2, lett. e), of the Regulation);

the Order has provided good cooperation with the Authority during the investigation (cf. art. 83, par. 2, lett. f), of the Regulation);

the Order is a small entity (with approximately 463 members registered in the architects' register), equipped with extremely limited organizational resources (see the statements of the Order, mentioned above, regarding the fact that the Entity can rely on "only one administrative staff member") (cf. art. 83, par. 2, lett. k), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the financial penalty at €2,000 (two thousand) for the violation of articles 5, par. 1, lett. a) and 6 of the Regulation, as well as 2-ter of the Code, as an administrative financial penalty considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account the aforementioned risks to which the two interested parties have been exposed, it is also deemed necessary to apply the ancillary penalty of publication on the Authority's website of this provision, as provided for by art. 166, comma 7 of the Code and art. 16 of the Authority's Regulation no. 1/2019.

In this context, considering, in any case, that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not apply. It is noted, finally, that the prerequisites referred to in Article 17 of Regulation No. 1/2019 are

met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

a) declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the conduct of the Order for violation of Articles 5, paragraph 1, letters a) and d), 6 and 37, paragraph 7, of the Regulation, as well as Article 2-ter of the Code;

b) pursuant to Article 58, paragraph 2, letter b) of the Regulation, admonishes the Order for having violated Article 37, paragraph 7, of the Regulation, as described above.

ORDERS

the Order of Architects, Planners, Landscape Architects, and Conservators of the Province of Matera, represented by the legal representative pro tempore, with registered office at Via Domenico Ridola, 21 - 75100 Matera (MT), Tax Code 93002810773, to pay the total sum of €3,500 (three thousand five hundred) as an administrative pecuniary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Order, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the total sum of €3,500 (three thousand five hundred) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

PROVIDES

- the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Guarantor's Regulation No. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Guarantor's Regulation No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 23, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei